

		As set forth above, the RMVA purports to cover “any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or our relationship, including advertising and other communications between you and Rivian, Rivian products or services, and as applicable, your credit application, or the purchase or condition of the Vehicle” (Orquiola Decl., Ex. B at p. 7.) This language covers Plaintiffs’ claims which relate to the warranties accompanying Plaintiffs’ leased Rivian. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) The Court finds the RMVA covers Plaintiffs’ claims. <u>Enforceability of the Agreement</u> Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal</i>, 14 Cal.4th at p. 413.) Plaintiffs have not opposed the motion and have therefore not raised any defenses as to enforceability. Accordingly, the Court GRANTS Defendant Rivian LLC’s motion to compel arbitration. The Court STAYS the action pending the completion of arbitration. The Court SETS a Status Conference re: Status of Arbitration for 11/20/26 at 9:00 a.m., in Department C32.
5.	LITZEN VS. ALBERTSONS COMPANIES, INC. 2024-01413486	MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST FOR PLAINTIFF The motion for Manouchag Litzen to be appointed as successor in interest to plaintiff and decedent Charles Litzen is GRANTED. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.)

Code of Civil Procedure section 377.32 provides the procedural requirements for a successor in interest to substitute in as plaintiff. Specifically, section 377.32 provides:

“(a) The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

- (1) The decedent's name.
- (2) The date and place of the decedent's death.
- (3) No proceeding is now pending in California for administration of the decedent's estate.
- (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.
- (5) Either of the following, as appropriate, with facts in support thereof:

(A) The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.

(B) The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.

(6) No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.

(7) The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.

(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.”

(Code Civ. Proc. § 377.32 (internal quotations omitted).)

Here, the Court continued the hearing on this motion from 4/21/26 to allow Manouchag Litzen time to fully comply with the statutory requirements by filing a supplemental declaration stating the place of the decedent's death and a copy of the decedent's death certificate. (See ROA No. 56.) Manouchag Litzen timely did so on 4/23/26. (See ROA No. 58.)

		The Court finds Manouchag Litzen, the surviving spouse of plaintiff Charles Litzen (“Decedent”), has complied with the requirements set forth in Code of Civil Procedure Section 377.32. Therefore, the motion is GRANTED.
6.	MARINERO VS. TRIANA 2022-01298697	MOTION TO SUBSTITUTE PLAINTIFF The motion for Jose Chicas, as Successor Trustee of The Arcadia Marinero Family Trust dated April 27, 2021, to be appointed as successor in interest to plaintiff and decedent Arcadia Marinero is GRANTED. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.) Code of Civil Procedure section 377.32 provides the procedural requirements for a successor in interest to substitute in as plaintiff. Specifically, section 377.32 provides: “(a) The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following: (1) The decedent's name. (2) The date and place of the decedent’s death. (3) No proceeding is now pending in California for administration of the decedent's estate. (4) If the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding. (B) The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.